

		other evidence showing Debtor was served with the new order to show cause or any other form of notice of today's hearing. The parties are ordered to appear for the hearing to discuss how to proceed with this matter.
14.	<i>Brimm vs. Mobilitas Insurance Company</i> 2026-01565804	Before the court are the hearings on the following motions filed by Mobilitas Insurance Company (Mobilitas): (1) the continued hearing on the motion to compel Kyle Brimm (Brimm) to respond to request for production of documents, set one, and request for monetary sanctions, (2) the initial hearing on the motion to compel Brimm to respond to special interrogatories, set one, and request for sanctions, and (3) the initial hearing on the motion to compel Brimm to respond to form interrogatories, set one, and request for sanctions. The original hearing on the motion to compel responses to the document requests was set for June 25, 2025. Prior to the hearing, the court posted the following tentative ruling, to which Mobilitas submitted: "Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel [K]yle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. "This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. "Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or

	action on the policy. (See Ins. Code, § 11580.2(f)(1), (2).) Here, the petition states the underlying accident occurred in San Francisco. Nothing is presented to show this court is the proper court for these proceedings. The court will need a declaration or other evidence showing this court is the court having jurisdiction over these proceedings. "Similarly, it is unclear this court has personal jurisdiction over Brimm sufficient to allow it to make the requested order directing Brimm to take certain actions. The court's file shows the petition initiating these proceedings and this motion were electronically served on an attorney (Eric R. Gruber) on Brimm's behalf. Typically, personal service of a case initiating document on the defendant or respondent is necessary to confer jurisdiction over the defendant or respondent. The court acknowledges service on counsel may be sufficient in proceedings such as these. (See <i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 927-928.) Mobilitas, however, has not presented sufficient evidence to show Miranda applies in this case so as to provide the court with jurisdiction to make the requested order. Mobilitas should submit a declaration or other evidence showing this court has jurisdiction over Brimm. "Any supplemental declarations or other filings addressing these issues must be filed and served by <u>July 1, 2026</u>. "Based on the foregoing, the motion is CONTINUED as set forth above." On June 26, 2026, Mobilitas filed a notice of non-opposition to the court's inquire regarding venue and request for transfer of proceedings to San Mateo County Superior Court. This notice states Mobilitas agrees this court is not the proper venue for these proceedings and that the matter should be transferred to San Mateo County were the accident occurred and the lawsuit between the drivers is pending. Based on the additional information provided and the agreement of Mobilitas, the court finds San Mateo County is the appropriate venue for this case and the court ORDERS THIS CASE TRANSFERRED to San Mateo County. Mobilitas is responsible for payment of the fees and costs associated with the transfer. (Code Civ. Proc., § 399(a).) Mobilitas is ordered to pay transfer fees and costs within 5 days. The fees include not only the transfer fee payable to this court, but also a check made payable to the San
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		Mateo County Superior Court for the first appearance fee in that court. Mobilitas may contact the clerk's office for the appropriate amount of each fee. Within 10 days of this hearing, Mobilitas is ordered to submit a proposed order for the court's signature. The order must contain at least the following: (1) the court orders this matter be transferred to the Superior Court of California for San Mateo County, upon payment of all the necessary fees required by law; (2) the basis of the transfer is because San Mateo County is the proper county for filing Kyle Brimm's uninsured motorist claim; (3) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; (4) the court, division, and address where the case is being transferred and (5) all currently pending motions to compel are vacated without prejudice to being reset in the transferee court. Finally, the court sets an order to show cause re dismissal of this action for failure to timely effectuate transfer for Monday, August 31, 2026, at 9:30 a.m., in Department C23. This hearing to confirm Mobilitas has taken all steps necessary to effectuate the transfer. If there is no appearance at the hearing and the transfer has not been completed, this case may be dismissed without any further notice to the parties. Mobilitas is ordered to give notice of this ruling.
15.	<i>Wilson vs. Oscar Health Plan of California</i> 2022-01298798	Before the court are the following two motions to tax costs: (1) the motion of plaintiff John Wilson (Wilson) to tax the Memorandum of Costs filed by defendant Oscar Health Plan of California (Oscar), and (2) Oscar's motion to tax Plaintiff's Memorandum of Costs. As more fully set forth below, both motions are GRANTED IN PART and DENIED IN PART. <u>Motion No. 1: Wilson's Motion to Tax Oscar's Costs</u> "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (<i>Ladas v. California State Automobile Association</i> (1993) 19 Cal.App.4th 761, 774.) "There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1267.) If the party seeking to tax costs makes a proper objection to an item in the cost bill, the burden then shifts back to the